

23PSCV03696 23PSCV03696

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Case Number: 23PSCV03696 Hearing Date: June 29, 2026 Dept: H

Monfared v. Elliott, et al., Case

No. 23PSCV03696

ORDER ON MOTION

TO STRIKE ANSWER

Plaintiff Mo Monfared's unopposed

Motion to Strike Rick Elliott's Answer is GRANTED. Because Defendants are in default, the Court vacates the Final Status Conference and Jury Trial previously set for July 7, 2026 and July 21, 2026, respectively, and sets an Order to Show Cause Re: Default Judgment for July 21, 2026, at 8:30 a.m.

Background

Plaintiff

Mo Monfared ("Plaintiff") alleges as follows:

Plaintiff

owns a 1969 Chevrolet Chevelle ("subject vehicle"). On or about April 26, 2022, Plaintiff entered into an oral agreement with Rick Elliott ("Elliott") and Joe Panzarello ("Panzarello") (together, "Defendants") to have Defendants completely restore the Chevelle. On or about November 4, 2022, Plaintiff picked up his subject vehicle in an unfinished condition because Defendants indicated that they would not continue the restoration unless Plaintiff paid more money than agreed upon. Plaintiff subsequently took the subject vehicle to Xtreme Autosports SCV ("Xtreme") to finish the restoration. Xtreme indicated that all of the work that had been done by Defendants had to be redone because the quality of work was poor.

On

November 19, 2025, Plaintiff filed a First Amended Complaint, asserting causes of action against Defendants and Does 1-50 for: (1) Breach of Contract, (2) Breach of Covenant of Good Faith and Fair Dealing, (3) Fraud, (4) Negligent, (5) Misrepresentation, (6) Conversion, (7) Unfair Business Practices [Violation of Business & Professions Code § 17200], and (8) Financial Elder Abuse.

On

January 15, 2026, Defendants' defaults were entered.

A Final

Status Conference is set for July 7, 2026. Trial is set for July 21, 2026.

Legal

Standard

“(a) As

used in this section: . . .

(2) The

term ‘pleading’ means a demurrer, answer, complaint, or cross-complaint.

(b)(1) Any party, within the time allowed to

respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. . .” (Code Civ. Proc., § 435).

“The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b)

Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436).

Discussion

Plaintiff moves the Court for an order, pursuant to Code of Civil Procedure section 435, et seq. and California Rules of Court, Rule 3.1322 [FN], striking out Elliott's answer.

Request for Judicial Notice

The Court rules on Plaintiff's Request for Judicial Notice ("RJN") as follows: Granted as to Exhibit A (i.e., Request for Entry of Default entered January 15, 2026) and Denied as to Exhibit B (i.e., non-conformed copy of Elliott's answer).

Merits

"As a general rule, the entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until. . . the default is set aside." (Humphrey v. Bewley (2021) 69 Cal.App.5th 571, 580 [internal quotations and citation omitted].) "[A] demurrer or answer filed after entry of default is. . . a nullity." (Id. at 581.)

Hinojosa represents, and/or the docket and accompanying RJN reflect, as follows:

On November 19, 2025, the Court granted Plaintiff's Motion for Leave to File the First Amended Complaint ("FAC"). (Hinojosa Decl., ¶ 5.) Plaintiff filed the FAC that same day. (Id.) The Court's November 19, 2025 minute order directed Defendants to file an answer to the First Amended Complaint within 30 days of the notice of ruling. (Code of Civ. Proc. 471.5, subd. (a).) Elliott's default was entered on January 15, 2026. (Id., ¶ 9, RJN Exh. A.) The docket reflects that Elliott thereafter purported to file an answer on February 2, 2026.

The unopposed motion is granted.

Because Defendants are in default, the Court vacates the Final Status Conference and Jury Trial set for July 7, 2026 and July 21, 2026, respectively, and sets an Order to Show Cause Re Default Judgment for July 21, 2026, at 8:30 a.m.

[FN] California Rules of Court Rule

3.1322 reads as follows:

"(a) Contents of notice

A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an

entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.

(b) Timing

A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as the demurrer.”